



File No.: EXP202206379

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) on May 6, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against SUMINISTRADOR IBÉRICO DE ENERGÍA, S.L. with NIF B67421867 (hereinafter, SIE).

In their submission, the complainant stated that the defendant company used their personal data by formalizing a contract for the supply of electricity, without there being consent nor had they previously provided such data, proceeding to charge their bank account under this non-consensual contract. For evidentiary purposes, the complainant submitted with their writing: a copy of the electricity supply contract from their company, an email from the latter communicating the cancellation of the previously contracted supply with them, bank statements showing the charges made to their bank account by the defendant company, as well as various invoices associated with the fraudulently contracted supply.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the defendant party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified on June 15, 2022, as evidenced by the acknowledgment of receipt in the file.

On July 15, 2022, this Agency received a written response to the forwarding, indicating the following information and statements:

- That "the procedures for formalizing the electricity supply contract at SIE require, as is logical, the verification and authentication of the customer's expression of will to proceed with the signing of the contract. This implies that, when a telemarketing service provider formalizes a supply contract on behalf of SIE, they must provide the recording of the...

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sales process. In this way, SIE can verify that the contracting has been carried out properly."

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That, when the contracting is carried out by a telemarketing service provider, the provider transfers to SIE the personal data of interested parties to whom SIE's products and services will be offered, subsequently acting as a data processor for SIE to carry out the activities of offering its products and services and contracting the corresponding products and services, being able to perform commercial actions only on those interested parties who have provided their consent for the transfer of their personal data to SIE for this purpose.

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That it cannot determine where the telemarketing service provider obtained the personal data of the claimant, since it obtained them as an independent data controller from SIE.

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That, at the time of signing the service provision contract, said telemarketing service provider acquired the commitment to transfer only the personal data of those interested parties who had given their consent for this purpose. Additionally, the service provider committed to properly inform the interested parties in accordance with data protection regulations about the transfer of their data to SIE.

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Furthermore, it expressly states that "this party acknowledges the existence of an error that caused the

Claimant to be re-registered as a client of SIE in January 2022 and invoices to be issued in the name of this."

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Finally, the responding party indicates that, "due to the detection of incidents of different nature in the contracting procedure for its services, SIE has adopted as a measure the total suspension of the contracting procedure for its services since March 4, 2022."

THIRD: On August 6, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: Taking into account such circumstances, the General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the details that are subsequently presented.

Upon reviewing the extracts of the bank receipts and the invoices associated with the allegedly fraudulent supply contract provided by the claimant, as well as the dates of each of them, the following is evidenced:

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All bank receipts provided, whose holder is the claimant, are issued by the responding party.

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In the same way, in each of the invoices, the data of the contract holder indicates the responding party.

Specifically, the following information appears: IBERIAN ENERGY SUPPLIER - Rambla del Garraf

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76, Sant Pere de Ribes Barcelona registered in the Mercantile Registry of Barcelona Volume 46,872

[...]

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There are three differentiated contracts with different dates:

SIE0021425: 12/05/21-28/06/21

ML76101: 14/09/21-05/10/21

ML78663: 04/11/21-10/11/21

The invoices associated with contracts ML76101 and ML78663 display the MASLUZ ENERGÍA logo, while the logo on the invoices associated with SIE0021425 is from OES ENERGÍA.

By virtue of these facts, on March 31, 2023, additional information was requested from the claimant in order to clarify various issues related to the events that occurred. The claimant sent their response to this Agency on April 17, 2023, in which they indicate the following statements:

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That they never contacted SIE nor entered into any type of contract with them.

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That their supplying company ENDESA "sent me an email on those dates saying that they were canceling the contract, completely disagreeing because I had not contracted with anyone."

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That SIE has not contacted them to cancel the work contract, nor have they forgiven the debt, only receiving messages from a law firm.

Additionally, the claimant provides the following documentation:

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Contracts with Endesa: dated October 17, 2019:

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Documentation from ENDESA dated June 22, 2021: General conditions of the electronic invoice. Price annex (with identifier OI-0025365913 and Supply ES0021000001483081ZS0F).

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Email from ENDESA (undated) informing that they have registered the request with identifier OI-0074795819 at the address ***DIRECCION.1.

Given these circumstances, on March 31, 2023, a request for information was made to the defendant party requesting, among other points, information about all contracts formalized between SIE and the claimant, as well as the evidence provided by the telemarketing service provider for the formalization of said contracts. SIE responded to this request on May 5, 2023, providing the following documentation:

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Screenshot of the data pertaining to the claimant.

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Certificate issued by a trusted third party certifying that the claimant accessed the pre-contractual information and electronically signed the supply contract.

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Contract for the provision of telemarketing services.

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Screenshot from the CRM showing that there is no record of any action from the claimant.

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The data associated with the claimant.
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The data of the telemarketing company: ALPA 57 PRODUCCIONES, S.L.
with registered office at C/ GUARDIA CIVIL S/N LA SOLANA (13240) CIUDAD REAL

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Regarding the origin of the data, they state that “from SIE it cannot be determined where the telemarketing service provider obtained the personal data of the Claimant, since it obtained them as the independent data controller of SIE.”

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That, “at the time of signing the service provision contract, said telemarketing service provider with which the mandatory data processing agreement was formalized in accordance with Article 28 of the GDPR acquired the commitment to only transfer the personal data of those interested who had given their consent for that purpose. Additionally, the service provider committed to properly inform the interested parties in accordance with data protection regulations about the transfer of their data to SIE.”

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There are two contracts with the claimant:

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The first: registered on 14/09/2021 and canceled on 05/10/2021.

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The second: registered on 04/11/2021 and canceled on 10/11/2021. According to the responding party, “This contract was activated by mistake, given that the telemarketing service provider erroneously sent us the claimant's data. Regarding this practice, SIE ceased to have commercial relations with the telemarketing service provider that it had been using for the acquisition of its clients.”

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Having requested the list of evidence that would prove that SIE verified that the contract was carried out appropriately, only the documentation evidencing the first contract is provided, consisting of the certificate issued by AVIVA VOICE Systems & Services S.L. (hereinafter, AVIVA) as a trusted third party.

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When requesting a copy of the contacts and complaints received from the affected party and details of the actions taken in their case, the responding party indicates that there are no records of communications exchanged with the claimant or complaints made.

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Regarding the request for a copy of the communications made to the claimant to notify them of the cancellation of the supply contract, the responding party explains that "when a cancellation of an energy supply contract is made, the outgoing company does not communicate to the customer nor confirm that they have been canceled."

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With respect to the result of the internal investigation initiated to determine whether there had been any breach of data protection regulations during the contracting process with the claimant, it states what has already been specified in its allegations regarding the transfer: "due to the detection of incidents of different nature in the contracting procedure for its services, SIE has adopted as a measure the total suspension of the contracting procedure for its services since March 4, 2022."

Taking into account this information, the telemarketing service provision contract dated February 3, 2021, between SIE and the telemarketing service provider (ALPA57) is reviewed. From the content of this contract, for the purposes of the present proceedings, the following stands out:

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In the section "11.- Data Protection," it is specified that ALPA57 will use its own database of potential clients and that it will guarantee and certify, providing all necessary documentation, that the origin of said database is legitimate and that it has the consent/authorization of the potential clients for carrying out commercial actions, that it complies with all applicable regulations on data protection and processing, and that this database is purged in such a way that it does not contain records that are listed on any "Robinson list" or records that have exercised their right to object to being in that database.

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In "Annex I - Access and Data Processing -," SIE is specified as the data controller and ALPA57 as the data processor. This document takes into account the aspects specified in Article 28.3 of the GDPR, in particular:

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Object.

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Source of the data and legality of the transfer.

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Purpose of the processing. ALPA57 undertakes to process the data in accordance with the instructions that SIE provides in writing.

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Types of data processed and categories of data subjects.

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[...]

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Subcontracting of services. Subcontracting is expressly prohibited unless authorized in writing by SIE.

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Annex II develops the working methodology, in which the data that ALPA57 will collect is defined, as well as the contracting procedure:

1.- ALPA57 will inform SIE's applications of said data, as well as the necessary documentation for contracting.

2.- ALPA57 will send the client their contract through SIE's application for them to sign. Under no

circumstances may a method of signing not provided or expressly validated by SIE be used.

3.- ALPA57 will be responsible for verifying and authenticating the contractual consent of new clients.

4.- In turn, ALPA57 must provide SIE with the complete and uncut recording of the sales process.

Without this recording uploaded to SIE's systems, the telephone sales contract will have no validity.

5.- SIE will provide ALPA57 access to its systems to upload data and recordings and sign contracts.

6.- The sales procedure will be carried out by ALPA57 following the instructions given by SIE and with the mandatory premise of truthfulness and proper treatment of clients or potential clients.

On May 10, 2023, a request for information was sent to SIE with the purpose of obtaining the recording of the call (not previously provided), validating the signature of the certificate provided in the previous request, obtaining information about contract SIE0021425, and certifying the cessation of relations between SIE and ALPA57. After this notification was automatically rejected, the established deadline having passed, the request for information was reiterated to the summoned party on May 22, 2023, with the act notified electronically on that same date.

The summoned party sent the following statements to this Agency on June 2, 2023:

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Regarding the recording of the call: "This party does not have the recording of the contract formalized on the indicated date, since, by mistake, ALPA57 PRODUCCIONES SL did not upload it to SIE's information system as it was obliged to."

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In relation to contract SIE0021425 with a registration date of May 12, 2021, and the evidence provided by the telemarketing service provider for the formalization of this contract, SIE informs that: "According to our information system, it is recorded that the registration of the electricity supply service was processed on 13/05/2021 and was terminated on 28/06/2021, once it was detected that the telemarketing service provider sent the claimant's data by mistake. Since it is a mistake, ALPA57 PRODUCCIONES SL did not provide any evidence of the contracting."

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Regarding the cessation of commercial relations with the telemarketing service provider ALPA57, the summoned party indicates: The cessation of the contracting of the company ALPA57 PRODUCCIONES, SL has not been formalized in any document. Simply, SIE has stopped requesting/contracting its services."

On May 10, 2023, a request for information was sent to ALPA57 requesting, among other points, information about all contacts made with the claimant in order to formalize contracts with SIE, as well as the reason why the claimant's data was sent again to activate a new contracting. The request is recorded as notified on May 19, 2023.

ALPA57 submitted its written allegations on June 5, 2023, in which it states:

"By means of this letter, within the indicated deadline, we inform that we have no information regarding this client, so we cannot provide the information they require."

FIFTH: According to the report obtained from the AXESOR tool, the last registration of SUMINISTRADOR IBÉRICO DE ENERGÍA, S.L., with NIF B67421867, published in the Commercial Registry (R.M.) is dated 04/11/2022 and pertains to the agreement for the voluntary dissolution of the company. As of 26/06/2023, the extinction of the company is not registered in the R.M.

However, in accordance with Article 371.2 of Law 1/2020, of July 2, which approves the Consolidated Text of the Capital Companies Law (TRLSC), "The dissolved company will retain its legal personality while the liquidation is carried out. During that time, it must add to its name the expression 'in liquidation.'"

According to the report from the AXESOR tool, in the year 2021, the turnover of SIE was

***AMOUNT.1.

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SIXTH: On July 26, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter, LPACAP), and after the period granted for the formulation of allegations had elapsed, it was confirmed that no allegations had been received from the respondent. Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following,

PROVEN FACTS

FIRST: On May 6, 2022, this entity received a letter from the complainant, in which it stated that the respondent SIE formalized an electricity supply contract, without there being consent or having provided such data beforehand, proceeding to charge amounts to their bank account by virtue of said contract.

SECOND: From the documents submitted by the parties during the course of the investigative proceedings, the formalization of the following contractual relationships between the complainant and the respondent is evidenced:

First contract: registered on 12/05/21 and terminated on 28/06/21.

Second contract: registered on 14/09/21 and terminated on 05/10/21.

Third contract: registered on 04/11/21 and terminated on 10/11/21.

THIRD: The investigative proceedings reveal that only from the second contract is consent from the complainant evidenced. No consent is evidenced in the other two contracts, a fact confirmed by the respondent during the course of the proceedings, who stated that it was, in both cases, an error.

FOURTH: By virtue of the aforementioned fraudulent contracts, various charges were made to the complainant's bank account. This fact is evidenced in the various invoices submitted by the complainant, in which the respondent SIE appears as the issuer and holder.

FIFTH: Following the investigative actions carried out by this entity, the existence of a data processing agreement between the respondent and an entity that provides telemarketing services is confirmed. According to the content of this contract, the latter has the status of data processor, while the respondent SIE is the data controller of the personal data derived from said contract. This contract outlines the obligations of the data processor, including the obligation to provide the controller with complete and unedited recordings of the sales process.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Obligation breached

The GDPR addresses in its Article 5 the principles governing the processing of personal data, a provision that states:

"1. Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject (<>)

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The second paragraph of the same article also establishes that “The data controller shall be responsible for compliance with the provisions of paragraph 1 and capable of demonstrating it (<>).”

For its part, Article 6 of the GDPR under the heading “Lawfulness of processing” specifies in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

“1. Processing shall be lawful only if it meets at least one of the following conditions:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect vital interests of the data subject or of another natural person.
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.”

In the present case, from the proven facts mentioned earlier, the existence of two contracts is inferred where the claimed party and the claiming party appear as interveners and in which there is no consent from the latter.

In this regard, it should be noted that, by virtue of the principle of proactive responsibility provided for in Article 5.2 of the GDPR, the burden of proof lies with the controller to demonstrate that the processing of the personal data of the claiming party was covered by one of the lawful circumstances provided for in Article 6.1 of the GDPR.

In the case at hand, from the instruction of this procedure, it is evident that the processing of the personal data of the claimed party carried out by SIE was not legitimized by any of the grounds stated in the aforementioned Article 6.1 of the GDPR. This unauthorized processing is clearly manifested in the absence of the complete recordings of the telephone contracts that would prove the granting of express consent by the claiming party, which have not been provided by the claimed party, either during the investigative proceedings or during the period for allegations granted by this entity following the initiation agreement. There is also no evidence of any other support that would demonstrate the consent of the claiming party in the indicated contracts.

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On the other hand, the claimed party itself has acknowledged on several occasions that both contracts were activated by mistake, due to the service provider erroneously sending the claimant's data.

Similarly, it has stated that the mentioned service provider did not provide any evidence of the aforementioned contracts.

III

Classification and qualification of the infringement

In accordance with the evidence resulting from the instruction of this procedure, it is considered that the processing of the personal data of the claimant carried out by SIE, consisting of the formalization of two electricity contracts in their name for which it issued respective invoices, was not covered by any of the legitimizing grounds in Article 6.1 of the GDPR.

In this sense, such facts constitute an infringement provided for in the aforementioned Article 6.1 of the GDPR, which is classified in Article 83.5.a) of the GDPR, a provision that states:

“5. The infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

Regarding the limitation period for this infringement, it is subject to the provisions of the LOPDGDD, which qualifies the infringement attributed to the claimed party as very serious and sets a limitation period of three years for it. Article 72.1.a) of the LOPDGDD states:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a limitation period of three years:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

IV

Sanction to be imposed

The corrective powers attributed to this Agency as the supervisory authority are listed in Article 58.2 of the GDPR, paragraphs a) to j).

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The provision mentions among them the power to impose an administrative fine in accordance with Article 83 of the GDPR (Article 58.2.i). Also, the power to order the data controller to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specific manner and within a specified timeframe (Article 58.2.d).

For its part, Article 83 of the GDPR, "General conditions for the imposition of administrative fines," states in its paragraph 1 that the supervisory authority shall ensure that the imposition of fines for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 complies in each individual case with the principles of effectiveness, proportionality, and deterrence.

The principle of proportionality requires a correlation between the infringement and the sanction, prohibiting unnecessary or excessive measures, so that it must be suitable to achieve the purposes that justify it. Article 83.2 of the GDPR determines the technique to be followed to achieve that adequacy between the sanction and the infringement committed and provides a list of criteria or factors that must be taken into account to graduate the sanction.

In relation to the facts presented, the following factors reflecting a greater unlawfulness of the conduct and/or culpability of the allegedly infringing entity are noted:

--Circumstance of Article 83.2.e) GDPR: "any previous infringement committed by the controller or the processor." The claimed party has previously been sanctioned by this Agency for similar facts that have given rise to this initiation agreement. Thus, sanctioning procedure PS/286/2022 was followed against it, in which it was sanctioned for violation of Article 6.1 of the GDPR in a resolution issued on 11/17/2022, a resolution that is final in the administrative route.

- Circumstance of Article 83.2.k) GDPR, in relation to Article 76.2.b) LOPDGDD: "The evident link between the business activity of the claimed party and the processing of personal data." The claimed party has as its corporate purpose, among others, the marketing of electrical energy. The execution of contracts it enters into with consumers in the development of this activity involves the processing of numerous personal data of its clients or even of third parties. The nature of this business activity obliges the data controller to exercise extreme diligence regarding compliance with the obligations imposed by personal data protection regulations, diligence that has not been present in this case. No mitigating circumstances are noted.

In accordance with the criteria of Articles 83.1 and 83.2 of the GDPR, taking into account the total annual global turnover of the previous financial year, as well as the presence of the aforementioned

aggravating circumstances; for the infringement of Article 6.1 of the GDPR and classified in Article 83.5.a) of the same text, it is appropriate to impose on the claimed party a sanction consisting of an administrative fine in the amount of €50,000 (FIFTY THOUSAND EUROS).

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V

Measures

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on SUMINISTRADOR IBÉRICO DE ENERGÍA, S.L., with NIF B67421867, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €50,000 (FIFTY THOUSAND EUROS).

SECOND: TO ORDER SUMINISTRADOR IBÉRICO DE ENERGÍA, S.L., with NIF B67421867, that pursuant to Article 58.2.d) of the GDPR, within three months from the notification of this resolution, to prove that it has implemented measures that ensure that the contracting is carried out with consent and to have documentary support that verifies this.

THIRD: TO NOTIFY this resolution to SUMINISTRADOR IBÉRICO DE ENERGÍA, S.L.

FOURTH: To warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data

Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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